

Health and Safety at Work

Mark Graham



Learning objectives

Unit level learning objective(s)

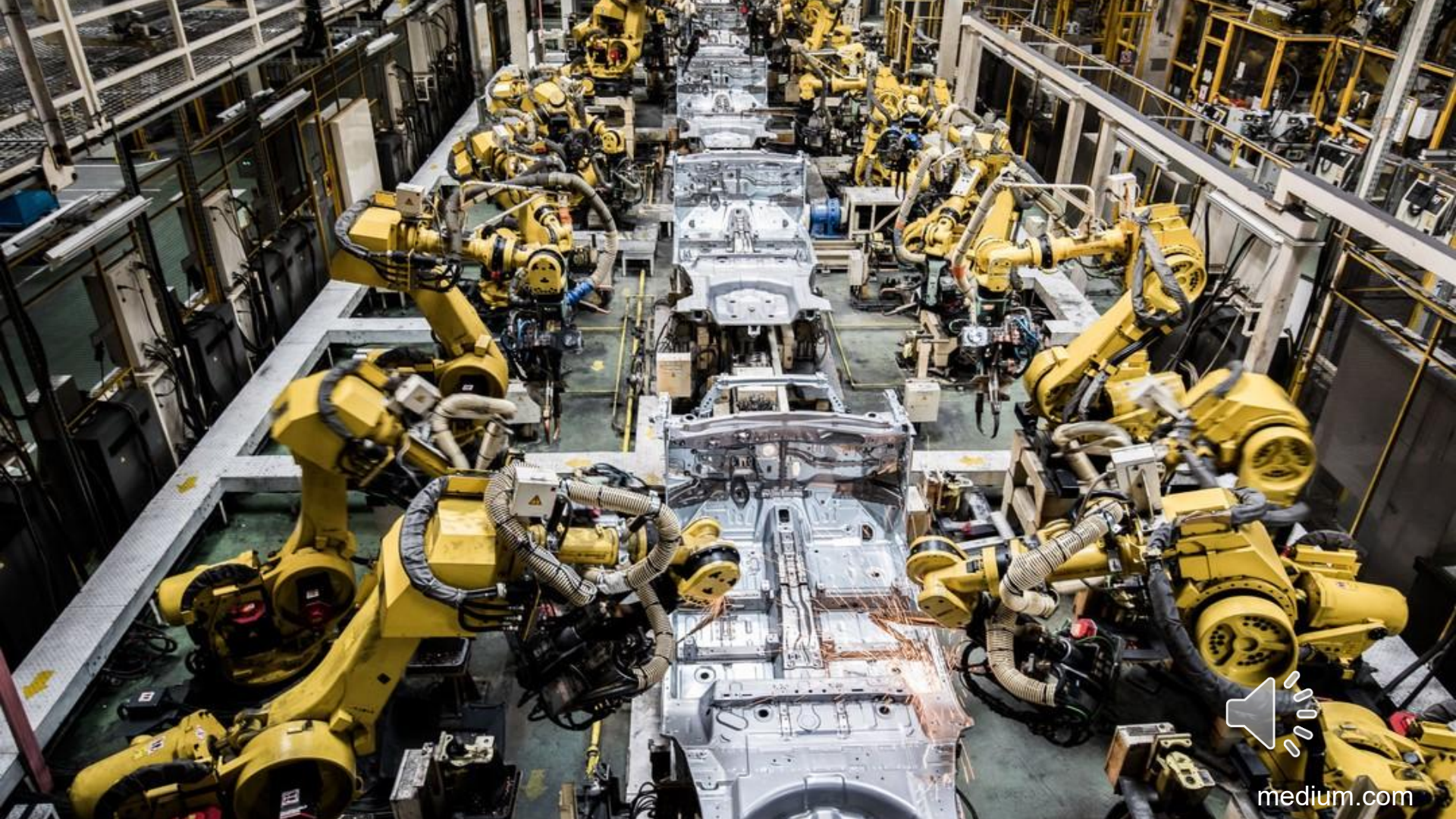
4. discuss key health and safety responsibilities for engineers; and using recognised risk management tools create risk assessments to analyse a variety of project risks;



Session level learning objectives

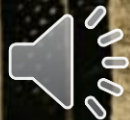
1. **Discuss** the Health and Safety responsibilities of engineers operating in the UK, **referring** to the key legal requirements & implications

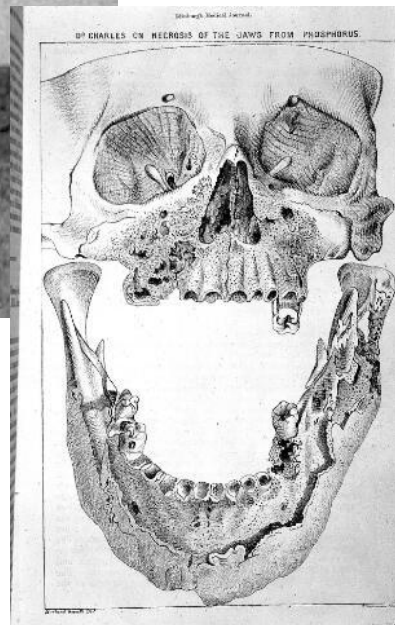
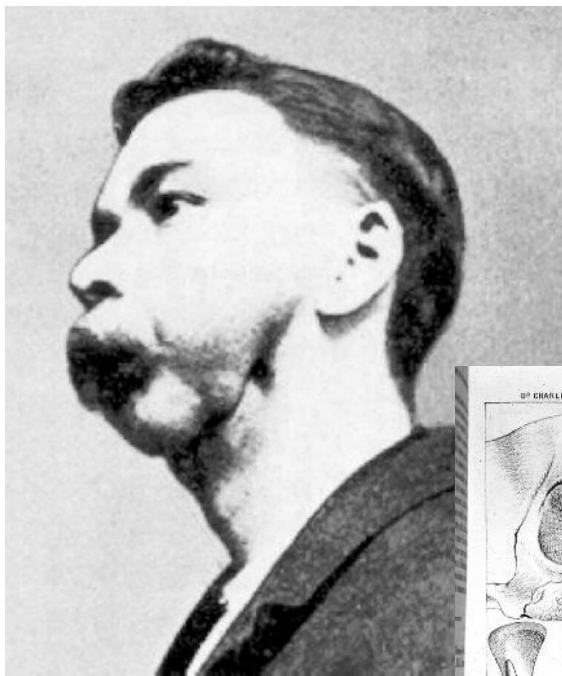




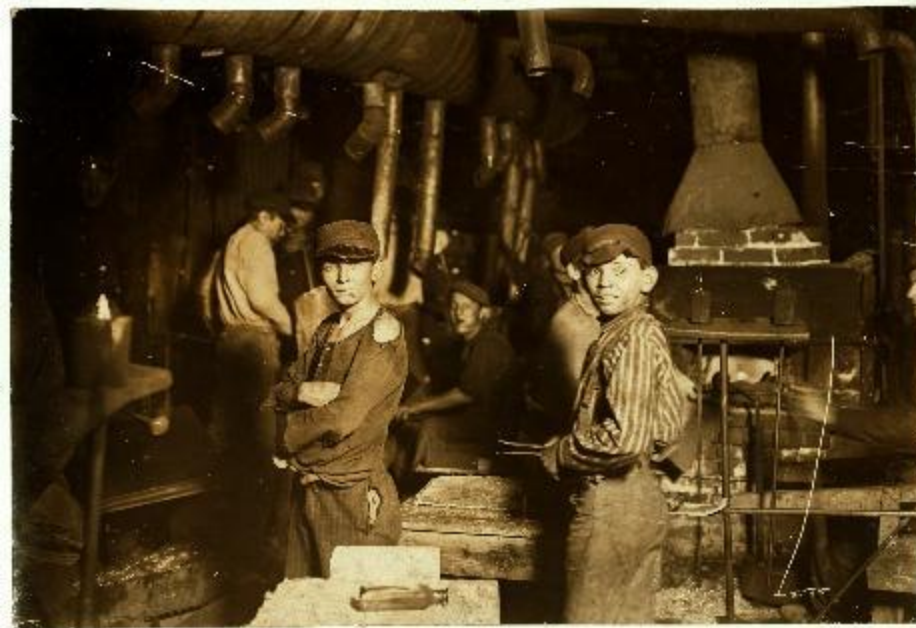


Emerson, P. & T.F. Goodall 1886, *Coming home from the Marshes*, Platinum Print, National Gallery of Art



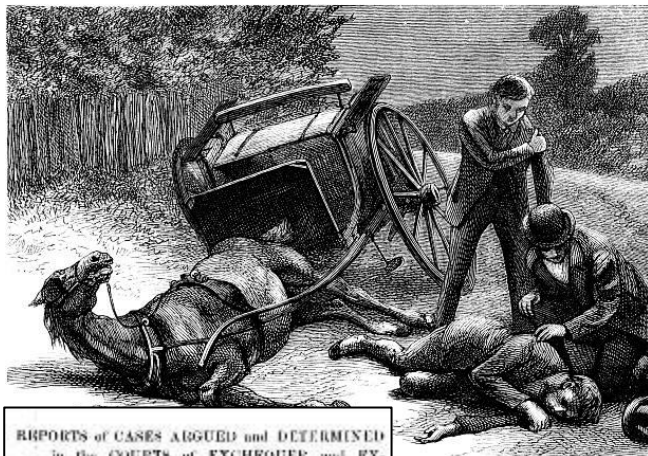


J. Bartholomew, wellcomecollection.org



Hine, L. W. 1908, *Glassworks. Midnight*, Library of Congress





Health and Morals of Apprentices Act 1802

The 1833 Factory Act

1835 Introduction of a duty of care

1880 employers liability act

Various further legislation (Mines act 1842 etc.)

Health and Safety at Work Act 1974

REPORTS OF CASES ARGUED AND DETERMINED
IN THE COURTS OF EXCHEQUER and EX-
CHEQUER CHAMBER, from Michaelmas Term,
1 VICTORIA, to Easter Term, 1 VICTORIA,
both inclusive. By R. MASON, Esq., and
W. N. WILSON, Esq., of the Middle Temple,
Barristers-at-Law. Vol. III. London, 1838.

[1] REPORTS OF CASES ARGUED AND DETERMINED IN THE COURTS OF EXCHEQUER,
AND EXCHEQUER CHAMBER, MICHAELMAS TERM, 1 VICTORIA.

Priestly v Fowler, 10 Ex. 1, 1837. — Judgment was given that the
plaintiff was a servant of the defendant in the parish of St. Andrew's, and that
the defendant was liable for the plaintiff's injury. The plaintiff was a
parish clerk, and was employed by the defendant to collect the
parish rates. He was injured while on duty, and the defendant was
liable for his injury. The plaintiff was a servant of the defendant in
the parish of St. Andrew's, and was employed by the defendant to
collect the parish rates. He was injured while on duty, and the
defendant was liable for his injury. The plaintiff was a servant of
the defendant in the parish of St. Andrew's, and was employed by
the defendant to collect the parish rates. He was injured while on
duty, and the defendant was liable for his injury. The plaintiff was
a servant of the defendant in the parish of St. Andrew's, and was
employed by the defendant to collect the parish rates. He was
injured while on duty, and the defendant was liable for his injury.

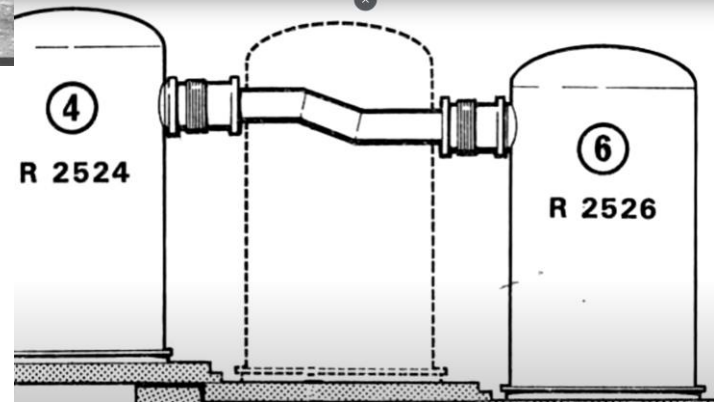
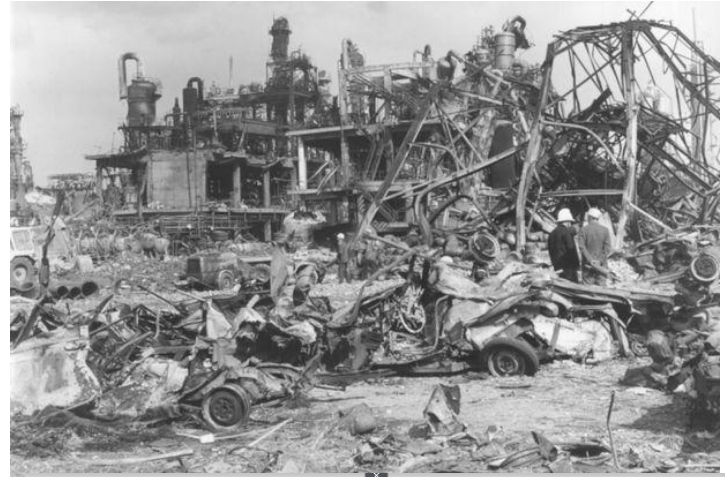
Priestly vs Fowler
Court proceedings
1837

[2] *Q. B. 11, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 55, 56, 57, 58, 59, 60, 61, 62, 63, 64, 65, 66, 67, 68, 69, 70, 71, 72, 73, 74, 75, 76, 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 97, 98, 99, 100.*

Case. The defendant moved that the plaintiff was a servant of the defendant in
the parish of St. Andrew's, and that the defendant was liable for the plaintiff's
injury.



Flixborough Disaster 1974



The Health and Safety at Work Act 1974 ^[1]

- HSAWA is the primary piece of legislation covering occupational health and safety in Great Britain
- Duty upon employers to ensure (as far as reasonably practical) the health safety and welfare of employees
- Sets out duties that:
 - employers have towards employees and members of the public
 - employees have to themselves and to each other
 - certain self-employed have towards themselves and others



[1] <https://www.hse.gov.uk/legislation/hswa.htm#:~:text=The%20Health%20and%20Safety%20at,and%20members%20of%20the%20public>

Specific (secondary) legislation

- Secondary legislation
 - ‘Statutory instruments’
 (‘regulations’)
 - Enforced by HSE and Local Authority (LA)
 - Functions locally → nationally
- Management of Health & Safety at Work Regulations 1999,
 - Manual Handling Operations Regulations 1992,
 - Control of Substances Hazardous to Health Regulations 2002,
 - Health & Safety (First Aid) Regulations 1981
 - Reporting of Injuries, Diseases and Dangerous Occurrence Regulations 2013
 - The Provision and Use of Work Equipment Regulations 1998
 - Lifting Operations and Lifting Equipment Regulations 1998
 - Electricity at Work Regulations 1989
 - Personal Protective Equipment at Work Regulations 1992
 - Workplace (Health, Safety and Welfare) Regulations 1992
 - Health & Safety (Safety Signs and Signals) Regulations 1996
 - Health & Safety (Display Screen Equipment) Regulations 1992



So what does HASAWA 1974 require?

2 General duties of employers to their employees

- (1) It shall be the duty of every employer to ensure, so far as is reasonably practicable, the health, safety and welfare at work of all his employees.
- (2) Without prejudice to the generality of an employer's duty under the preceding subsection, the matters to which that duty extends include in particular—
- (a) the provision and maintenance of plant and systems of work that are, so far as is reasonably practicable, safe and without risks to health;
 - (b) arrangements for ensuring, so far as is reasonably practicable, safety and absence of risks to health in connection with the use, handling, storage and transport of articles and substances;
 - (c) the provision of such information, instruction, training and supervision as is necessary to ensure, so far as is reasonably practicable, the health and safety at work of his employees;
 - (d) so far as is reasonably practicable as regards any place of work under the employer's control, the maintenance of it in a condition that is safe and without risks to health and the provision and maintenance of means of access to and egress from it that are safe and without such risks;
 - (e) the provision and maintenance of a working environment for his employees that is, so far as is reasonably practicable, safe, without risks to health, and adequate as regards facilities and arrangements for their welfare at work.
- (3) Except in such cases as may be prescribed, it shall be the duty of every employer to prepare and as often as may be appropriate revise a written statement of his general policy with respect to the health and safety at work of his employees and the organisation and arrangements for the time being in force for carrying out that policy, and to bring the statement and any revision of it to the notice of all of his employees.
- (4) Regulations made by the Secretary of State may provide for the appointment in prescribed cases by recognised trade unions (within the meaning of the regulations) of safety representatives from amongst the employees, and those representatives shall represent the employees in consultations with the employers under subsection (6) below and shall have such other functions as may be prescribed.
- (5). (repealed in 1975)
- (6) It shall be the duty of every employer to consult any such representatives with a view to the making and maintenance of arrangements which will enable him and his employees to co-operate effectively in promoting and developing measures to ensure the health and safety at work of the employees, and in checking the effectiveness of such measures.
- (7) In such cases as may be prescribed it shall be the duty of every employer, if requested to do so by the safety representatives mentioned in [F2subsection (4)] above, to establish, in accordance with regulations made by the Secretary of State, a safety committee having the function of keeping under review the measures taken to ensure the health and safety at work of his employees and such other functions as may be prescribed.

Provide plant, equipment and systems that work and are safe

Ensures safe handling of substances and materials

Deliver adequate training, instruction and supervision

Provide a safe place of work, with safe access and welfare facilities

Develop and maintain a written Health and Safety Policy

Consult with workplace safety representatives



Impacts of improved safety?

- Reduction in fatalities [1]
 - 651 in 1974
 - 150 in 2014
- Reduction in injuries [1]
 - 336,701 in 1974
 - 77,310 in 2014
- Is that good enough?



Reasons to care?

- Moral Responsibility
- Economic responsibility
- Legal responsibility



ALARP?



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[1]

<https://www.legislation.gov.uk/ukpga/1974/37/section/2>

Your Role



In summary

- Primary legislation - Health and Safety at Work act 1974
- Engineers must be aware of legal frameworks in which they operate
- Safety starts here!



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